LI SONG

Versus

FRANCESCO MARCONATI
And
EAGLE ITALIAN SHOES (PVT) LTD
And
EAGLE ITALIAN LEATHER (PVT) LTD
And
KUTAURA BOND TADERERA
And
ALESSANDRO MARCONATI
And
REGISTRAR OF COMPANIES & INTELLECTUAL
PROPERTY N.O

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
CHILIMBE J
HARARE 28 and 29 July 2026

Opposed application

S Hoko for the applicant
B Mudhau with him *R.C. Chingwe-Gangata* or the 1st – 5th respondents
No appearance for 6th respondent

CHILIMBE J

BACKGROUND

[1] I dispose hereunder, the points *in limine* raised in this application for declaratory and consequential relief in terms of section 14 of the High Court Act [*Chapter 7:06*].

THE DISPUTE BETWEEN THE PARTIES

[2] The applicant ("Ms Li Song"), and the first respondent ("Mr Marconati") were co-directors of the second and third respondent companies until October 2021. Ms Li Song and Mr Marconati had a fall out. In the result, Ms Li Song was removed as a director of second and third respondents, as well as signatory to the 2 entities` bank accounts.

[3] Concomitant with her removal was the appointment of third and fourth respondents ("Kutaura Bond" and "Alessandro" respectively) as directors of the 2 respondent entities. Ms Li Song prays for an order nullifying the resolutions by second and third respondent on her removal, and appointment of Kutaura Bond and Alessandro as directorship in second and third respondents.

[4] As a parting shot, Ms Li Song also seeks the removal of Mr Marconati as director of the 2 respondent entities on the basis of his alleged conviction of the crime of theft of trust property and breach of fiduciary duties.

[5] The application was opposed by all the respondents except the sixth respondent who is not before the court. Mr Marconati deposed to the founding affidavit upon which the opposition of first to fifth respondents was anchored.

[6] I may mention that the second and third respondents each issued a resolution authorising Kutaura Bond to represent them in these proceedings. Kutaura Bond, in turn, delegated that authority to Mr Marconati who then deposed to the said opposing affidavit. This arrangement triggered from Ms Li Song, one among the several objections discussed below.

THE PARTIES` RESPECTIVE POINTS *IN LIMINE*

[7] Mr *Hoko*, for Li Song promptly moved 2 preliminary points contending that there was no proper opposition before the court because; -

i. The opposing affidavit sworn to by Mr Marconati and upon which the rest of the respondents anchored their opposition, was irregularly commissioned and therefore invalid.
ii. Additionally, that Kutaura Bond`s attempt to delegate authority to represent second and third respondents to Mr Marconati was invalid at law.
iii. As such, even discounting the impugned affidavit, the second and third respondents had no opposition before the court.

[8] Mr *Mudhau* for the first to fifth respondents in turn moved the following points *in limine* in their notice of opposition [before abandoning (ii) and (iii)] ; -

i. the application had prescribed under the Prescription Act, that the relief sought was incompetent in light of the Applicant's deportation and designation as a *persona non grata*,
ii. that the Applicant, being a *peregrinus*, had failed to furnish security for costs,
iii. that the proceedings constituted an abuse of court process due to pending related matters (*lis pendens*)
iv. that the Applicant had made material misrepresentations regarding criminal proceedings, and;
v. that the matter disclosed material disputes of fact rendering it unsuitable for determination on application and more appropriately dealt with by way of action proceedings.

THE MUTUTALLY DESTRUCTIVE POINTS *IN LIMINE*

[9] Before dealing with these objections, a few general observations are warranted. Firstly, it is a well-established principle of our procedural law that properly raised, preliminary objections can help courts truncate proceedings or resolve disputes. But the same courts will frown on those litigants who, out of desperation, and or deviousness, resort to baseless preliminary objections as a ploy to frustrate opponents, delay proceedings or distract the court.

[10] This point was stressed with sufficient clarity in *Telecel Zimbabwe Pvt Ltd* v *Postal and Telecommunications Regulatory Authority of Zimbabwe & Ors* HH 446-15) and more recently in *Delta Beverages Limited & 2 Ors v Blakey Investments Pvt Ltd* SC 107-24.

[11] Secondly, the expectation, without denting the right to raise points of law per *Muchakata v Netherburn Mine* 1996 (1) ZLR 153 (S), is that parties must endeavour to litigate on pleadings rather than, as a matter of habit, on points *in limine*. Thirdly, parties and their respective legal practitioners are expected to reflect soberly whenever preliminary points are

flagged, especially on prior notice in the founding and opposing papers, or even heads of arguments.

[12] The parties may thus consult, clarify, concede, withdraw, rectify or otherwise strategise on how to best dispose or streamline issues. Such approach should significantly improve the litigation of matters as a general rule. Lastly, in matters such the present dispute where parties raise mutually destructive preliminary points, the court will be guided by their relative dispositive effect in determining their order or precedence.

[13] In that regard, the Supreme Court per KUDYA JA in *Reverend Clement Nyathi v Trustees Apostolic Faith Mission Africa & 5 Ors* SC 63-22, applied "*the first-in-time procedural defect*" test to determine precedence of preliminary matters. In *Mapfumo & Anor* v *Divvyland Investments (Pvt) Ltd & 2 Ors* SC 39-24, the same court, per MAVANGIRA JA considered whether there was in the first instance, an application before it, and held as follows at paragraph 27; -

> "27. Due to the defects allegedly afflicting both the applicants' and the first respondent's papers, the image is conjured of the proverbial pot calling the kettle "names." With the issues raised in the respective preliminary points in mind, either side could fit into the description of either the pot or the kettle. It is appropriate, in my view, to first ascertain whether the applicants' papers are in order before it becomes necessary to examine or pronounce upon the first respondent's preliminary points."

[14] In the present matter, it was agreed that the applicant`s point *in limine* took precedence. If the opposing affidavit is declared invalid, then there would be no opposition before the court. Again if the arrangements to substitute the authority to oppose proceedings on behalf of the second and third respondents are ruled improper, the affected parties would be ousted from the proceedings.

THE OPPOSING AFFIDAVIT

[15] Mr *Hoko* cited *Firstel Cellular (Pvt) Ltd* v *Netone Cellular (Pvt) Ltd 2015 (1) ZLR 94 (S)* in support of his argument that Mr Marconati`s affidavit did not disclose the capacity of Jayeshkumar Desai, the officer who commissioned it. In the absence of such clarification, it was impossible to ascertain if Jayeshkumar Desai was lawfully authorised to administer the

oath, submitted Mr *Hoko*. Consequently, the affidavit failed to meet one of the minimum requirements of a valid affidavit. It could not be validly accepted as evidence before the court.

[16] Mr *Mudhawu,* dismissed the argument as disingenuous. Counsel argued that the Justices of Peace and Commissioners of Oaths Act [*Chapter 7:09*] ("the Act"), governed the appointment, and duties of commissioners of oaths. These persons fell into 2 classes; - *ex officio* commissioners of oaths, and general commissioners of oaths. The latter class was appointed directly by the Minister so empowered by that Act.

[17] Mr *Mudhau* further contended that upon appointment, no further legal requirement fell upon a commissioner of oaths to justify or disclose his or her office or professional capacity on their commissioning stamp. Counsel referred to section 8 of the Act which prescribed that; -

> 8 Power to administer oaths
>
> A justice of the peace or commissioner of oaths may within the area for which he has been appointed administer an oath to any person:
>
> Provided that he shall not administer an oath—
>
> (*a*) in respect of any matter in relation to which he is in terms of any regulation made under section *eleven*,
> prohibited from administering an oath; or
>
> (*b*) if he has reason to believe that the person in question is unwilling to make an oath.

[18] On that basis, submitted Mr *Mudhau*, the mere fact that the individual identified himself as a commissioner of oaths sufficed. On inquiry from the court as to which category of commissioners of oaths did Jayeshkumar Desai therefore belong, counsel conceded that the affidavit did not disclose that fact. He however insisted that Desai`s commissioner's stamp alone constituted sufficient proof of his office. If the objector had any evidence to the contrary they could place it before the court.

[19] In response, Mr *Hoko* sustained his earlier position that that the burden to establish Rajeshkumar Desai`s authority could not rest upon Ms Li Song. It was incumbent upon the commissioner of oaths, on the face of the affidavit itself, to disclose sufficient particulars confirming his or her authority.

THE LAW

[20] There is a wealth of authorities dealing with the office of commissioner of oaths as well as the procedure to follow in taking and commissioning evidence or averments on affidavit. And the purpose of such general guidance is clear. The affidavit is an instrument of wide and diverse application in this jurisdiction. The fact that it purports to be a solemn attestation of matters deposed to, and before a person imbued with appropriate authority, elevates the affidavit to a status beyond a mere statement of issues.

[21] Further, an affidavit must thus speak for itself, including confirmation of the authority of the administer of the oath. I will examine some of the authorities, commencing with the Supreme Court`s decision in *Firstel Cellular (Pvt) Ltd* v *Netone Cellular (Pvt) Ltd 2015 (1) ZLR 94 (S)* where PATEL JA (as he then was) stated at 98G-99A that:

> "It is common cause that there is no specific legislation regulating the issue in this jurisdiction and that the matter is one that is governed by practice. **In that regard, what is required is that any stamp that is used to designate a commissioner of oaths should clearly identify the person before whom an affidavit is deposed and the office or capacity in which he or she acts as a commissioner."** [marked in bold and underline for emphasis]

[22] The above guidance clarifies matters beyond issue. The commissioner must not only be identifiable by name but the affidavit must also disclose the office or legal capacity in terms of which that individual exercises the powers of commissioner of oaths. Similarly, in *Maxwell Munondo* v *New Century Productions Pvt Ltd* HH 242-25 at paragraph 8, this court held that; -

> "The position is therefore clear that the commissioner of oaths ought to disclose his identity and status. It must be clear, *ex facie* the document commissioned, in what capacity he exercises the function of commissioner of oaths."

[23] The court went on to distinguish *Firstel*, observing that what saved the affidavit in that case was that the commissioner was a well-known legal practitioner. In contrast, where only a name appears without any indication of the commissioner's office or capacity, the affidavit fails to satisfy the requirements laid down by the Supreme Court.

[24] This position was reinforced in by *Prosecutor General* v *Enmore Makarichi & 2 Ors* HH 502-23 at paragraphs 21-23, where the court stressed the importance of proper commissioning and stated that; -

> "In a nutshell, care should have been taken in composing the supporting affidavits and in ensuring that they were properly deposed to. The dates and places of such depositions should have been clearly reflected as well as the respective identities of the commissioners of oaths and the offices or capacities of the persons in terms of which they acted as commissioners of oaths. For example, if a person is a commissioner of oaths by virtue of being a duly admitted and practising notary public in Zimbabwe, the following information would be reflected on the commissioner of oaths' stamp: his or her full name, that the person is a legal practitioner, conveyancer (if such be the case), notary public and commissioner of oaths. The description as notary public would be evidence that the person signed the affidavit as an *ex officio* commissioner of oaths.
>
> For certainty, such thorough commissioners of oaths would also reflect, on their stamp, the law firms under which they practice their profession and their physical address. Immediately above the designation of the commissioner of oaths, the commissioner would then append his or her signature.
>
> For police officers who are appointed either as commissioners of oaths or as justices of the peace and hence ex officio commissioners of oaths I would suggest that the commissioner of oaths stamp bears such person's full names, their rank in the Zimbabwe Republic Police, their force number, the designations as justice of the peace and commissioner of oaths as well as the name and address of the police station, district, provincial or head office where the person is based. Such commissioner of oaths would, in terms of the law, have to administer the oath and sign the affidavit in the presence of and at the same time as the deponent to that affidavit. Finally, the date of deposition to the affidavit must appear on the affidavit itself."

[25] Finally, in *Muzanenhamo* v *Gadaga and Ors* HH65-06 at page 3*,* GOWORA J (as she then was) held; -

> "The applicant contends that the document is an affidavit. An affidavit must be sworn before a person competent to administer an oath. The applicant in his affidavit makes the averment that the document was sworn to before a magistrate. The document bears the stamp of the magistrates court. The person who signed as Commissioner of oaths is not identified, nor is he described as commissioner of oaths. There is, in fact, no indication that the document was signed by a commissioner of oaths. In the circumstances the document is not an affidavit. What it is in fact a written statement not made on oath."

[26] In the present matter, Mr *Mudhau* effectively argued that it fell upon Ms Li Song to tender evidence confirming Rameshkumar Desai`s details as commissioner of oaths. Counsel may have overlooked, in making that submission, the principle in *Musanhi v Mt Darwin Rushinga Co-operative Union* 1997 (1) ZLR 120 on "proving a negative".

[27] In that matter, GUBBAY CJ, cited at page 123, Grosskopf JA in *Eskom v First National Bank of Southern Africa Ltd* 1995 (2) SA 386 (A) who observed at 392D-E, that; -

> "It has often been said that determining the incidence of the onus of proof 'is merely a question of policy and fairness based on experience in the different situations'. (Wigmore as quoted in Mabaso v Felix 1981 (3) SA 865 (A) at 873C and During NO v Boesak & Anor 1990 (3) SA 661 (A) at 673A). As a matter of fairness and sound judicial policy, it seems reasonable that, where one party has the means of establishing a particular fact and his opponent not, the onus should rather be on the former than on the latter. Although this factor would not be conclusive it should, in my view, be accorded some weight. It was taken into consideration in Mabaso's case supra at 873E-F in determining the onus in civil cases where a defendant relies on self-defence as a justification for what would otherwise be an assault."

DISPOSITION

[28] The authorities are clear. A commissioner of oaths must evidence, on the face of the affidavit he or she commissions, the requisite details of his or her office or appointment. The commissioner to Mr Marconati`s affidavit failed that duty. As such the challenge to the deponent`s affidavit must succeed With that conclusion, the opposition to the present application necessarily collapses.

[30] This finding renders it unnecessary for a ruling on the validity of delegated authority issued to Mr Marconati by Kutaura Bond. I may comment in passing though, that the prospects of the authority surviving such a challenge appear slim.

It is hereby ordered that; -

1. The preliminary objection raised by applicant regarding the invalidity of the opposing affidavit filed of record be and is hereby upheld.
2. The notice of opposition be struck out and the matter to proceed as unopposed.
3. The first, second, third, fourth and fifth respondents are ordered, jointly or severally the one or some paying, and the other or others being absolved, to pay the applicant`s costs.

Madhlabe Attorneys at Law-applicant`s legal practitioners
Madzima & Company Law Chambers-first to fifth respondents` legal practitioners.

[CHILIMBE J____29/07/26]